

NEWSLETTER N. 515 of December 15, 2023

No response to employee requests, the Authority fines Autostrade and Amazon Transport
Healthcare: The Privacy Authority sanctions training company
Condominium: no to video surveillance systems without assembly resolution
Fines to two municipalities for unlawful use of recordings of a conversation

No response to employee requests, the Authority fines Autostrade and Amazon Transport
Data controllers must always allow the exercise of rights provided by privacy regulations. The Authority has sanctioned Autostrade per l'Italia and Amazon Italia Transport, respectively with fines of 100,000 and 40,000 euros, for failing to provide timely and justified responses, even if negative or deferred, to requests for access to their personal data submitted by some employees and former employees. [SEE web doc n. 9960875 and 9960854]

The first measure originates from complaints by 50 employees who had approached Autostrade requesting access to their personal files, payslips, and a series of information related to the processing of data for the calculation of the payslips themselves without receiving any response.

In response to the Authority's request for explanations, the company stated that it had not responded to the requests in order not to compromise its right to defense in court. In fact, there were several ongoing legal proceedings between the company and the workers concerning the accrual and calculation methods of severance pay.

Furthermore, the company claimed that employees could know their salary data by independently accessing the dedicated IT platform.

The Authority, however, considered that Autostrade should have responded to the employees' requests, specifying the reason for the denial as well as the possibility of filing a complaint with the Authority or appealing to the judicial authority. The company should also have provided a response regarding the data already available to the workers, indicating to them the IT platform through which to access the requested information.

The Authority, therefore, ordered Autostrade to provide a complete response to the requests of the complainants and imposed a fine of 100,000 euros on the company for the violations found.

In the case of Amazon, the Authority intervened following a complaint from a former employee who had reported the company's failure to respond to the request for a copy of the documents related to their employment relationship.

In response to the Authority's request for information, the company stated that it had not responded to the request because it was drafted in a very broad and generic manner. It subsequently sent a copy of the requested documents to the former employee, but only after the initiation of the Authority's investigation, and in any case almost six months after the thirty-day deadline set by the European Regulation on privacy. The Authority, reminding Amazon that it should have responded promptly to the former employee's request, possibly asking for details on the data they wanted to access, imposed a fine of 40,000 euros on the company.

Healthcare: The Privacy Authority sanctions training company

Online health data of a boy among the materials of a course for doctors

It was discovered that the personal data and information related to the health and judicial investigations concerning the deceased son (biography, psychiatric assessments, medical history, medications taken, crimes for which he was being investigated) had been published online, among the documents of a training course for psychiatrists. The individual turned to the Privacy Authority, which imposed a fine of 18,000 euros on the company organizing the course.

The documents were part of the educational material used to illustrate to doctors the particular pathology suffered by the boy. The material - made available to participants via a link sent by email at the end of the course - was also accessible online by anyone who knew the URL.

In the sanctioning measure, the Authority, in addition to reiterating that the data of deceased persons continue to be protected by privacy regulations, stated that the company should have implemented appropriate technical, organizational, and verification measures to permanently ensure the confidentiality of the processed data. In addition to verifying the adequacy of the anonymization measures adopted on the personal data of the complainant and the deceased son, the company

should have, for example, employed a computer authentication procedure to allow access to the documentation only to the doctors who had attended the training course.

The Authority, while considering that the access link to the documentation had been promptly removed, imposed a fine of 18,000 euros on the company for unlawful processing of health-related personal data and

****Judicial Matters****

****Condominium: No to Video Surveillance Systems Without Assembly Resolution****

****Fine of 1,000 Euros to an Administrator****

The Privacy Guarantor has imposed a fine of 1,000 euros on a condominium administrator who installed a video surveillance system without the resolution of the condominium assembly. The condominium resolution is, in fact, the prerequisite for the lawfulness of the processing carried out through cameras. In the case subject to the provision, the condominium owners were notified of the installation of the cameras via an email.

From the investigation conducted by the Guarantor, initiated following a complaint from a condominium owner, it emerged that a video surveillance system consisting of two cameras had been installed at the condominium, positioned outside the building, with a viewing angle extending to the parking area and the access gate, with partial visibility of the public road. The notice informing of the presence of the cameras, although indicated by some signs, lacked the indication of the data controller. Furthermore, the device not only recorded images but also allowed them to be viewed via a mobile phone in the possession of the administrator.

In his defense, the administrator stated that, since the condominium owners agreed on the necessity of installing a video surveillance system to address the continuous damages occurring in front of the condominium, he installed the system urgently, reserving the right to adopt the condominium resolution at the first available opportunity.

In its sanctioning provision, the Authority recalled that, where the condominium owners agree on the protection of common areas, a condominium resolution is necessary to proceed with the installation of cameras, which the Administrator must execute. The resolution is, in fact, the instrument through which the condominium owners contribute to defining the main characteristics of the processing, identifying the methods and purposes of the processing itself, the retention periods of the recorded images, and the identification of the subjects authorized to view the images. In the absence of the condominium resolution, adopted as required by the civil code by majority, the processing cannot be correctly attributed to the condominium, resulting in the qualification of the administrator as the data controller. The processing carried out by the administrator was therefore found to be unlawful and resulted in the application of the sanction.

****Sanctions to Two Municipalities for Unlawful Use of Recordings of a Conversation****

The Civil Court of Brescia has ordered the suspension of the effectiveness of the provision regarding the 20,000 euro fine

The Privacy Guarantor has sanctioned two municipalities for the unlawful use of audio-video recordings of a conversation that took place at a Local Police Command. [doc. web n. 9963486]

The Authority intervened following a complaint from an employee of a municipality in the province of Brescia, who was then the Deputy Commissioner of Local Police and had gone to the offices of the Local Police Command of another municipality, where he had a conversation with an officer regarding work-related issues and working conditions.

The Commander of the local police of the municipality where the complainant worked had requested and obtained from the other municipality the audio-video recordings of that conversation, captured by the camera inside the Command, referring to an unspecified criminal investigation. The recordings were used to impose a sanction on the Deputy Commissioner, who subsequently resigned. Later, the employee passed away, but the Guarantor, considering the seriousness of the incident, continued the investigation ex officio.

The Authority reiterated that the employer can process the personal data of employees only if necessary for managing the employment relationship and fulfilling specific obligations or tasks arising

from the sector regulations.

The Guarantor therefore deemed the transmission and use of the recordings used to impose the disciplinary sanction unlawful, as they lacked an appropriate legal basis. In particular, the Authority noted the disproportion of acquiring audio through surveillance devices, with the risk of "capturing" information about the opinions, relationships, or private matters of workers or about facts that are not relevant to the employment relationship.

Several violations were contested, including the failure to comply with sector regulations regarding remote monitoring of workers, the collection of data unrelated to work activity, the lack of transparency towards the data subjects, the unlawful communication of the complainant's personal data from one municipality to another, the failure to conduct an impact assessment regarding the video surveillance system, and the violation of the principle of data retention limitation. Both municipalities were sanctioned considering the severity of the violations, but also their modest size.

The municipality that collected the data through the system...

of video surveillance and then transmitted the audio-video recording was fined 50,000 euros, and the person who requested it and used it for disciplinary purposes was imposed a fine of 20,000 euros.

THE ACTIVITIES OF THE GUARANTOR - FOR THOSE WHO WANT TO KNOW MORE

The most important interventions and measures recently adopted by the Privacy Guarantor Authority and ACN together for a safer digital environment

Approved the Guidelines for password retention - Press release of December 12, 2023

Privacy under the tree. The Guarantor's advice for effectively protecting personal data even at Christmas - December 11, 2023

Artificial intelligence: the G7 of privacy guarantors in Rome. From October 9 to 11, 2024, the event organized by the Italian Authority – Press release of November 30, 2023

NEWSLETTER of the Guarantor for the protection of personal data (Reg. at the Court of Rome no. 654 of November 28, 2002).

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